

bee in that house where hee lodged, or in the whole towne at any time.

I doe not insist upon this, because shee did not nominate him or any other unto us, but onely those foure already expressed: and for the wrongs done to them, shee craved mercy at Gods hands, as for all other her sins, and in particular for that of witch-craft, renounced the Divell, embraced the mercies of God purchased by the obedience of Iesus Christ, and professed that her hope was onely by his suffering and passion to bee saued. And all these, that is to say, her former grievous offences committed against God, and his people, her detiance of the Divell, and reposing all confidence of salvation in Christ Iesus alone, and his merits, shee in particular maner confessed openly at the place of execution, in the audience of multitudes of people gathered together (as is usuall at such times) to be beholders of her death. And made there also profession of her faith, and hope of a better life hereafter; and the meanes whereby shee trusted to obtaine the same, as before, hath beene specified. And

being asked, if shee would be contented to have a psalme sung, answered willingly that she desired the same, and appointed it herselfe, the Lamentation of a Sinner, whose beginning is, Lord turne not away thy face, &c. And after the ending thereof thus finished her life: so that in the iudgement of charity we are to conceive the best, and thinke shee resteth in peace, notwithstanding her heynous transgressions formerly committed: for there is no malady incurable to the Almighty physitian, Esai. 1, 18. Ezech. 33, 11. Therefore Caine did injury to God, when convicted of the barbarous and unnaturall murder of his righteous brother, he cryed out that his sinne was greater then could be forgiven, Gen. 4, 13. for Gods mercy is greater then mans misery can be. And even for the like unto this very fact, we have a booke case, already adiudged, and over-ruled in those Ephe-sians, who brought their coniuering bookes, sacrificed them in the fire, estimated at the value of 900*l.* of our money, repented of their sinnes, and obtained mercy, Acts 19, vers. 19.

113. Proceedings against Mr. WRAYNHAM, in the Star-Chamber, for Slandering the Lord-Chancellor Bacon of Injustice, Pasch, 16 JAMES I. A. D. 1618.*

BEFORE the duke of Lenox; the earl of Suffolk, lord treasurer; the earl of Worcester, lord privy seal; the earl of Pembroke, lord chamberlain; the earl of Arundel; Viscount Wallingford; sir Fu'ke Greville, chancellor of the exchequer; Dr. Abbot, lord archbishop of Canterbury; Dr. King, bishop of London; Dr. Andrews, bishop of Ely; sir Edward Montague, l. c. justice of the King's bench; sir Henry Hobart, l. c. justice of the Common Pleas; sir Laurence Tanfield, Lord chief baron of the Exchequer; sir Edward Coke; sir Thomas Lake, principal secretary; sir Henry Cary, comptroller.

Sir Henry Yelverton, Attorney General.—May it please your Lordships; It is the honour of this Court, that it represents the highest earthly majesty, and his presence; and it is his majesty's honour, that as himself is clothed with justice, so you, as the greatest and highest next his ma-

jesty, should put on the same garment. Clemency and justice are the two lights of every kingdom, without which your persons and estates would be exposed to violence, and without which great monarchies would be but great thefts; and as justice is not to be recompensed in price, so ought not the scandal hereof to go unpunished; especially, when it toucheth so great a person, as, in the sacred seat of justice, is next to the king; the Chief Judge in this Court, and the sole Judge in Chancery, who is much defamed by the gentleman at the bar, in the most precious point of all his virtues, his Justice: be it spoken without offence, basely and blamelessly is my Lord Chancellor traduced, as if he deserved that all the thunderbolts of heaven should fall upon him.

At my lord's first coming into this place, he found a Cause in Chancery, between this gentleman at the bar, and one Mr. Fisher, not controverted in the title, but concerning the value of the lease, which Fisher held of Wraynham; in which, the Lord Chancellor perused the proceedings of the cause, called the parties to give a summary end to so tedious a cause; and because the success answered not the desire of this gentleman, therefore he kicks against authority, who before was not more grieved at the expence, than now impatient at the sentence; which was not want of justice in my lord, but of equity in the cause.

I confess I was of counsel with Mr. Wraynham, and pressed his cause as far as equity would suffer; but I know that Judges look with other eyes than Counsellors do; they go not

* It should seem from the proceedings against Wraynham for libelling lord Bacon with regard to one of his Decrees, that the Chancellors sometimes decided causes rather in a more summary manner than is usual at present. See also what Roper, as quoted by Mr. Barrington, says of sir Thomas More's often stopping proceedings upon his perusal of bills preferred to him. Among other curious particulars to be inferred from this trial, it is very clear that the Master of the Rolls was then considered only as the first Master in Chancery, as his reports are frequently alluded to. See Barrington Observations on stat. 15 Hen. 6.